

5	23CV418058	Modesta Castaneda vs AMERICAN HONDA MOTOR CO., INC., a California Corporation	Plaintiff Modesta Castaneda's motion to compel strike American Honda Motor Co., Inc.'s objections and compel further responses to Plaintiff's request for production of documents (set two) nos. 10, 14, 23 and 24 is DENIED. First, the Court provided a detailed analysis of the scope of permissible discovery in lemon law cases in its February 2, 2024 order denying Plaintiff's first motion to compel. Plaintiff fails to address what the Court already stated in that order. Next, Plaintiff once again relies on a single meet and confer letter to constitute its meet and confer efforts even though the Court <i>twice</i> admonished Plaintiff that sending a letter, failing to respond to a request for a phone call, then filing a motion was not code-compliant meet and confer. Again, it appears to the Court Plaintiff simply ignored the Court's February 2, 2024 and March 20, 2024 orders. Finally, in response to each of the requests for production Plaintiff seeks to compel, Defendant clearly and unequivocally responded that after a reasonable search, no responsive documents exist to produce. Thus, it is unclear to the Court what Plaintiff would have the Court order produced here, and Plaintiff says nothing about this even in reply. Defendant argues this conduct is sanctionable, and the Court agrees. However, Defendant does not submit any information regarding fees to which Plaintiff could have responded in reply. Suffice it to say at this time that Plaintiff's blatant disregard of the Court's two prior discovery orders and repeated admonishments will be heavily considered when this case is concluded and Plaintiff seeks attorneys' fees under the statute. Court to prepare formal order.
6	23CV427611	Carrie LeRoy vs Robin Love	Defendant's motion for attorneys' fees pursuant to Code of Civil Procedure section 425.16(c)(1) is GRANTED. The Court granted Defendant's anti-SLAPP motion by order dated May 8, 2024. The award of fees to a prevailing defendant on an anti-SLAPP motion is mandatory. (<i>Marshal v. Webster</i> (2020) 54 Cal.App.5th 275, 285.) Anti-SLAPP fee awards should include expenses incurred for all proceedings "directly related" to the special motion to strike and fees "addressing matters with factual or legal issues that are 'inextricably intertwined' with those issues raised in an anti-SLAPP motion." (<i>Henry v. Bank of Am. Corp.</i> (N.D.Cal. Aug. 23, 2010) 2010 WL3324890 *4.) To determine the correct award, the Court applies the lodestar method which is calculated by multiplying "the number of hours reasonably expended. . . by the reasonable hourly rate" of counsel. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 17 Cal.4th 1084, 1095.) To determine reasonableness, the Court considers "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure." (<i>Id.</i> at 1096.) "The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v. Board of Trustees of Cal. St. Univ.</i> (2005) 132 Cal.App.4th 359, 396; <i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 559.) Defendant's rate of \$600 per hour is reasonable for this case type in Santa Clara County. The Court has reviewed Defense counsel's time sheets and finds the number of hours spent on this case to be reasonable given the nature of this particular case, which involves numerous factual assertions amongst numerous purported witnesses, each of which had to be researched and fact checked. The Court carefully considered whether the fees incurred after the anti-SLAPP motion was granted were appropriately awarded here, and concludes that those fees are properly awarded because they were incurred in direct relation to this motion for attorneys' fees, which fees are plainly recoverable. Plaintiff is accordingly ordered to pay Defendant \$76,852.18 in attorneys' fees and costs. Court to prepare formal order.
7	23CV428303	John Doe R.V.R. vs Robert Crose, an individual et al	Santa Clara County's Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. Scroll to line 7 for complete ruling. Court to prepare formal order.

8	24CV432356	Lisa Bargas et al vs Thomas Zscherpel	Defendant's motion to enforce settlement is GRANTED. For the Court to enforce a settlement pursuant to Code of Civil Procedure section 664.6, the Court must first determine whether the parties entered a valid and binding settlement of all or part of the case. (<i>Corkland v. Boscoe</i>, (1984) 156 Cal. App. 3d 989.) The parties' settlement agreement must contain all material terms and the parties must agree to those terms to have a meeting of the minds necessary for contract formation. (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793.) Study of the exhibits attached to the Declaration of Steven Sayad reveals that these requirements for enforcement are met. Exhibit A makes a conditional policy limit demand with the following terms (1) acceptance before April 27, 2024, (2) proof of all liability insurance policies, their limits, and unredacted declaration pages, and (3) if there is a release, it be consistent with the terms of the demand. The letter further states that these terms are all material, and "any deviation from this settlement demand within the release will be treated as a counteroffer." Defendant responds in writing on April 19, 2024, (1) accepting the demand, (2) providing proof of the only liability insurance policy Defendant has, confirming that no others exist and including an unredacted declaration page, and (3) enclosing a release consistent with the terms of the policy limits demand. It appears from emails attached as Exhibit F that post-acceptance, Plaintiff sought an asset affidavit. However, an asset affidavit is not in the demand attached as Exhibit A (although it appears that was part of an earlier demand Defendant rejected). Plaintiff's argument that the demand was too uncertain to accept is unpersuasive. The Court need not rely on extrinsic evidence to conclude that the demand related only to Thomas Bargas, since the entire focus of the demand relates to his injuries and makes no mention of Lisa Bargas. And the letter, which Plaintiff wrote, demands "acceptance" by a date certain; the plain language of the letter makes clear that Plaintiff intended it to be an offer when written. The letters, taken together, are a textbook offer and acceptance right out of law school exam. Defendant's motion is accordingly granted. Court to prepare formal order.
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